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|   |                                                                                                                                                                                                                                         | <p>also demonstrated that on 4/21/26, it made a tender of the defense to Towman. (Sargenti Decl., ¶ 3, Ex. 1.)</p> <p>Finally, as the causes of action for indemnity and contribution focus primarily on responsibility for Plaintiff's alleged damages, the proposed amended cross-complaint would not greatly expand the facts and issues regarding the underlying incident.</p> <p>Miraloma is ORDERED to file the First Amended Cross-complaint within five days.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
| 6 | <p><b>Martinez vs. Jimenez</b></p> <p><b>2023-01365732</b></p> <p><b>Motion to be Relieved as Counsel</b></p>                                                                                                                           | <p>The motion of attorney Yuri Voronin of Wade Litigation, APC to withdraw as attorney of record for defendant Joseph Jimenez is GRANTED. (Code Civ. Proc. § 284, CRC 3.1362.) Attorney will be relieved as counsel of record for client effective upon filing of a proof of service of the signed order on client.</p> <p>Moving attorney is to give notice.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
| 7 | <p><b>Perez vs. West H&amp;A LLC</b></p> <p><b>2025-01532225</b></p> <p><b>Motion to Quash Service of Summons</b></p> <p><b>CMC</b></p> <p><b>OSC re Failure to Comply with CRC 3.110(b)</b></p> <p><b>OSC re Failure to Appear</b></p> | <p>Defendants' Motion to Quash Service of Summons and Complaint is GRANTED.</p> <p>Defendant Nationstar Mortgage LLC (erroneously sued as Nationstar Mortgage, LLC) ("Nationstar") specially appears and moves under Code Civil Procedure section 418.10. Nationstar challenges the court's personal jurisdiction over it on the ground of improper service.</p> <p>Code of Civil Procedure, section 418.10, subdivision (a)(1), provides that a defendant may serve and file a notice of motion "[t]o quash service of summons on the ground of lack of jurisdiction of the court over him or her." "In the absence of a voluntary submission to the authority of the court, compliance with the statutes governing service of process is essential to establish that court's personal jurisdiction over a defendant. When a defendant challenges the court's personal jurisdiction on the ground of improper service of process the burden is on the plaintiff to prove the existence of jurisdiction by proving, inter alia, the facts requisite to an effective service." (<i>Summers v. McClanahan</i> (2006) 140 Cal.App.4th 403, 413; see also <i>CenterPoint Energy, Inc. v. Superior Court</i> (2007) 157 Cal.App.4th 1101, 1118.) This may be shown by affidavits, declarations, or other competent evidence. (<i>CenterPoint Energy, Inc., supra</i>, 157 Cal.App.4th at 1118.)</p> <p>A plaintiff may serve an LLC either by the methods specified in the California Corporations Code or through methods permitted to serve corporations. (See Corps. Code § 17701.16, subd. (a) ["In addition to Chapter 4</p> |